

Amador Superior Court
Monday, January 6, 2020
Andrea Sexton
DEPT 3

Tentative Rulings are proposed as orders to be issued at the hearing and are posted in advance for the convenience of the parties and their counsel. Each matter on calendar will be called and parties are expected to attend. For those matters where the parties are not ordered to appear and either the parties agree or no objection is made at the hearing, the Court routinely adopts the tentative ruling as the ruling in the matter.

For privacy purposes on the publicly posted version of this document the parties' last names have been replaced by keeping only the first letter followed by three x's (example, John Doe = John Dxxx).

Case Number	Primary Party / Attorney	8:30:00AM Calendar	Secondary Party / Attorney
<u>1</u> 13-FCD-05130	XXXX, ANNETTE/		XXXX, ROBERT/ Interested Party: COUNTY OF AMADOR / CSCSA Interested Party:

EVENT: PETITIONER'S OSC/MOTION FOR MODIF.OF CHILD SUPPORT

ACTION: DISSOLUTION W/ MINOR CHILD

EVENT NOTES: PETITIONER'S REQUEST FOR ORDER CHANGE CHILD SUPPORT, REIMBURSEMENT FOR UNCOVERED MEDICAL COSTS FOR MINOR, SPOUSAL SUPPORT.

Tentative Ruling:

Petitioner filed a request for order on October 25, 2019 seeking: (1) modification of child support; (2) modification of spousal support; and (3) reimbursement of the minor child's uncovered medical expenses.

The court does not issue a tentative ruling regarding the request to modify child support and for payment of uncovered/out of pocket medical expenses for the minor child. The court shall hear from the parties at the time of hearing. Regarding uncovered medical costs, the parties shall be prepared to address the court regarding the applicability of Respondent's insurance coverage to offset the costs of the orthodontic care received, and proof of providing timely notice of out of pocket costs to the Respondent.

As to the request for modification of spousal support, the court's tentative ruling is to deny the request, finding the moving party has not met the initial burden on the motion of showing a change of circumstances. A thorough review of the court file indicates this issue has been raised by Petitioner on at least 3 prior occasions with court rulings made on February 20, 2018, April 23, 2018, and July 17, 2018.

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Case Number	Primary Party / Attorney	8:30:00AM Calendar	Secondary Party / Attorney
<u>2</u> 19-DCS-04138	COUNTY OF AMADOR/ CSCSA		XXXX, CHRISTOPHER/ Interested Party: XXXX, JAMI

EVENT: MOTION FOR JUDGMENT

ACTION: FAMILY SUPPORT

EVENT NOTES: FAMILY SUPPORT REVIEW HEARING

Tentative Ruling:

There is no tentative ruling. The court shall hear from the parties at the time of hearing.